

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 24, 2023. The complaint is directed against the COMMUNITY OF PROPERTY OWNERS B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that the president of their Community of Property Owners has sent a letter to XXXX informing of their status as a debtor, which contains personal data relating to them (name, surname, ID number, and postal address) in violation of the GDPR.

Along with the complaint, a copy of the alleged letter submitted by the respondent to the bank (addressed to the mortgage credit department of BBVA) is provided, which bears a signature but no sender's details, and in which, among other content, the following is stated:

"...I inform you that this gentleman does not pay the community expenses of a property owned by him located at ***ADDRESS.1: an apartment that he also rents for his benefit. Should this information be of interest to you, it is at your disposal."

Additionally, other handwritten letters from the president of the Community addressed to the complainant are provided, which expressly indicate:

"Document 3 includes other handwritten letters from Mr. C.C.C. addressed to this complainant in which it is observed and evidenced that it is the aforementioned respondent who has written all the communications."

Finally, the complainant explains how they accessed the alleged letter from the respondent, stating the following:

"A letter was sent to XXXX to obtain a copy of the communication that the respondent had submitted to XXXX, and this entity responded by providing a copy of the document."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 03/09/2023 as evidenced by the acknowledgment of receipt in the file.

On 09/10/2023, a response was received by this Agency stating the following:

"As for the COMPLAINT (..... from the Property Registry) for being XXXX, a counterpart in its capacity as creditor: SOURCE OF THE PERSONAL DATA of the COMPLAINANT and with the legitimate human intention of mere warning, prevention, or caution against the harm to our Community by the debtor complainant (UNPAID CONTRIBUTIONS).

THIRD: On October 19, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 15, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.4 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 12/04/2024 as evidenced by the acknowledgment of receipt in the file.

SIXTH: Once the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

In view of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this proceeding,

PROVEN FACTS

FIRST: The respondent sent a letter dated 23/03/2023 to XXXX informing of the complainant's status as a debtor, which contains personal data relating to them (name, surname, ID number, and postal address).

The letter submitted by the respondent to the bank and stamped with the entry registration of XXXX dated 31/03/2023 was addressed to the mortgage credit department of XXXX, indicating that the complainant had a debt with the indicated community.

It states among other things the following:

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“...I inform you that the aforementioned individual does not pay the community expenses of a property owned by him located at ***ADDRESS.1: a floor that he also rents for his benefit. Should this information be of interest to you, it is at your disposal.”

SECOND: The document was handwritten by the president of the Community, as can be deduced from other letters handwritten by him, addressed to the claimant and which are part of the file dated 8/12/2022, 5/02/2023, and 15/03/2023.

THIRD: According to the response dated 9/10/2023 to the transfer of the claim by this Agency, the respondent, through its president, acknowledged the infringement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent collected and retained, among others, the following personal data of individuals: name, identification number, and economic data related to the Community of property owners, among other processing activities.

The respondent carried out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines “personal data security breaches” (hereinafter, security breach) as “all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

In this case, there was a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach, as the claimant's data and their status as a debtor were sent by ordinary mail to a banking entity.

According to the Article 29 Working Party, a “Confidentiality Breach” occurs when there is an unauthorized or accidental disclosure of personal data, or access to the same.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in section 1.f) of Article 5 of the GDPR.

III

Principle of Integrity and Confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the case at hand, as already pointed out, the claimant's data was disclosed to third parties (XXXX) without authorization. Ultimately, confidentiality was not ensured in the processing of the data by the respondent, violating the transcribed article.

Therefore, in accordance with the proven facts available at this moment in the resolution of the warning procedure, it is considered that the known facts constitute an infringement, attributable to the respondent, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the Infringement of Article 5.1.f) of the GDPR

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

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a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. In accordance with Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at

ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall be closed.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In the present case, it is considered lawful not to impose a sanction consisting of an administrative fine and to replace it with a warning directed at the complained party.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

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FIRST: TO ISSUE A WARNING to the COMMUNITY OF PROPERTY OWNERS ***ADDRESS.1, with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS

***ADDRESS.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be deemed concluded.

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Mar España Martí

Director of the Spanish Data Protection Agency

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